



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 6637 (EXTENSION)
SIXTH REVISION January 11, 1991

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 6637 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to January 31, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 04 1992
(DATE)

Dist: PHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Russell-Stanley Corporation
Red Bank, NJ

December 2, 1991

EXPIRED - NO RENEWAL
NOT ACTIVE



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JAN 11 1991

DOT-E 6637
(SIXTH REVISION)

1. Russell-Stanley Corporation, Red Bank, N.J., is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation in commerce of the corrosive liquids, Class B poisonous liquids, flammable liquids, organic peroxides, and oxidizers described in paragraph 3 below subject to the requirements specified herein. This exemption authorizes the use of a non-DOT specification polyethylene drum, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Russell-Stanley Corporation's application dated December 11, 1989 and October 30, 1990, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class).

a. Corrosive liquids for which DOT-34 reusable polyethylene container is prescribed in 49 CFR Part 173; Corrosive liquids specifically identified to, and acknowledged in writing by, the Associate Administrator for Hazardous Materials Safety (AAHMS) prior to the first shipment.

b. Poisonous liquids, Class B which are specifically identified to, and acknowledged in writing by, the AAHMS prior to the first shipment.

c. Flammable liquids for which 49 CFR 173.119(a) and (b) packaging requirements are applicable and which have been specifically identified to, and acknowledged in writing by, the AAHMS; other flammable liquids, including liquid organic peroxides classed as flammable liquids, specifically identified to, and acknowledged in writing by, the AAHMS prior to the first shipment.

d. Liquid organic peroxides classed as organic peroxides which are specifically identified to, and acknowledged in writing by, the AAHMS prior to the first shipment.

e. Hydrogen peroxide solution in water containing 52 percent or less hydrogen peroxide by weight classed as an oxidizer.

JAN 11 1991

Continuation of 6th Rev. DOT-E 6637

Page 2

f. Sodium persulfate maximum 15% aqueous solution with detergents, classed as an oxidizer; other oxidizers specifically identified to, and acknowledged in writing by the AAHMS prior to the first shipment.

4. PROPER SHIPPING NAME (49 CFR 172.101). The generic commodity description or specific chemical name, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.119(a), (b), (m); 173.154; 173.221; 173.245(a)(26); 173.249(a)(1); 173.250a(a)(1); 173.257(a)(1); 173.263(a)(28); 173.265(d)(6); 173.266(b)(8); 173.272(i)(9); 173.276(a)(10); 173.277(a)(6); 173.287(c)(1); 173.289(a)(i); 173.292(a)(1); 173.346(a); 173.357(b); 173.358(a); 173.359(a), (b); 178.19.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.

7. SAFETY CONTROL MEASURES.

a. The packaging authorized is a non-DOT specification reusable molded polyethylene container of 55 gallon capacity for use without overpack (removable head not authorized), made in compliance with Specification 34 (49 CFR 178.19) except as follows:

- | | |
|-----------------------|---|
| 49 CFR 178.19-2 | - Melt index value is 0.10 maximum. |
| 49 CFR 178.19-3 | - (Add) For marked (rated) capacity of 55 gallons, the minimum thickness measured on any point of the container is 0.140 inch except for no less than 0.100 inch measured only in small arms around under cuts and corners. |
| 49 CFR 178.19-6(a)(1) | - Does not apply. Instead, each drum must be marked "DOT-E 6637" followed by the rated capacity of the container. These marks shall be understood to certify that the container complies with all specification requirements. |

JAN 11 1991

49 CFR 178.19-7(c)(2) - Static compression value is 2,400 pounds.

b. The containers must possess the chemical and physical properties as reported to the AAHMS by petitioner's letters of application. Furthermore, drums manufactured after November 4, 1980, may have rolling hoops and dimensions as shown in petitioner's letter and drawing dated November 4, 1980.

c. Any change of design, materials or process method must be approved by the AAHMS.

d. Opening in the container must not exceed 2.7 inches in diameter.

e. Containers for hydrogen peroxide and sodium persulfate, 15% aqueous solution, must have a vented closure to prevent accumulation of internal pressure and the head with the closure must be marked "Keep This End Up."

f. Reuse of container must be in accordance with the applicable requirements of 49 CFR 173.28.

g. For shipment of those organic peroxides by motor vehicle and cargo vessel which require refrigeration, an alarm system must be provided which by means of a light, sound or other signal will indicate that the cargo has reached the maximum allowable transportation control temperature. The driver of the vehicle or the master of the vessel must be informed concerning the hazards of the cargo and steps to take if the alarm indicator functions.

h. Commodities must be compatible with the polyethylene container (PE), and must not permeate the PE to an extent that a hazardous condition could be caused during transportation and handling.

8. SPECIAL PROVISIONS.

a. Offerors for transportation of hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

c. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; the special packaging requirements of 49 CFR 173.3a for certain poisonous materials; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 100-180.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. January 31, 1992.

Issued at Washington, D.C.



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN 11 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA.